

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1139

Introduced by Hallstrom, 1.

Read first time January 20, 2026

Committee:

- 1 A BILL FOR AN ACT relating to child support; to amend section 42-371,
- 2 Reissue Revised Statutes of Nebraska; to change provisions relating
- 3 to liens arising from child support orders; and to repeal the
- 4 original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 42-371, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 42-371 Under the Uniform Interstate Family Support Act and sections
4 42-347 to 42-381, 43-290, 43-512 to 43-512.10, and 43-1401 to 43-1418:

5 (1)(a) Except as provided in subdivision (1)(b) of this section, all
6 ~~(1)~~ All judgments and orders for payment of money shall be liens, as in
7 other actions, upon real property and any personal property registered
8 with any county office and may be enforced or collected by execution and
9 the means authorized for collection of money judgments. ÷

10 (b) A judgment or order for payment of child support or spousal
11 support creates a lien upon the real or personal property of the judgment
12 debtor which attaches when the payment is due and extinguishes when the
13 payment is made.

14 (c) For purposes of this section, a current child support or spousal
15 support order payment history from the Title IV-D Division of the
16 Department of Health and Human Services setting forth evidence that all
17 support payments are current, and have been made as ordered for the
18 previous twelve-month period or the total length of time the order has
19 been in effect, whichever is shorter, is prima facie evidence that such
20 payments are in fact current and such evidence operates to release the
21 lien described in subdivision (1)(b) of this section for purposes of
22 transferring a specific parcel of real property;

23 (2) The judgment creditor may execute a partial or total release of
24 the judgment or a document subordinating the lien of the judgment to any
25 other lien, generally or on specific real or personal property.

26 Release of a judgment for child support or spousal support or
27 subordination of a lien of a judgment for child support or spousal
28 support may, if all such payments are current and not delinquent or in
29 arrears, be released or subordinated by a release or subordination
30 document executed by the judgment creditor, and such document shall be
31 sufficient to remove or subordinate the lien. A properly executed,

1 notarized release or subordination document explicitly reciting that all
2 child support payments or spousal support payments are current is prima
3 facie evidence that such payments are in fact current. For purposes of
4 this section, any delinquency or arrearage of support payments shall be
5 determined as provided in subsection (2) of section 42-358.02;

6 (3) If a judgment creditor refuses to execute a release of the
7 judgment or subordination of a lien as provided in subdivision (2) of
8 this section or the support payments are not current, the person desiring
9 such release or subordination may file an application for the relief
10 desired in the court which rendered the original judgment. A copy of the
11 application and a notice of hearing shall be served on the judgment
12 creditor either personally or by registered or certified mail no later
13 than ten days before the date of hearing. If the court finds that the
14 release or subordination is not requested for the purpose of avoiding
15 payment and that the release or subordination will not unduly reduce the
16 security, the court may issue an order releasing real or personal
17 property from the judgment lien or issue an order subordinating the
18 judgment lien. As a condition for such release or subordination, the
19 court may require the posting of a bond with the clerk in an amount fixed
20 by the court, guaranteeing payment of the judgment. If the court orders a
21 release or subordination, the court may order a judgment creditor who,
22 without a good faith reason, refused to execute a release or
23 subordination to pay the judgment debtor's court costs and attorney's
24 fees involved with the application brought under this subdivision. A
25 showing that all support payments are current shall be evidence that the
26 judgment creditor did not have a good faith reason to refuse to execute
27 such release or subordination. For purposes of this section, a current
28 certified copy of support order payment history from the Title IV-D
29 Division of the Department of Health and Human Services setting forth
30 evidence that all support payments are current is prima facie evidence
31 that such payments are in fact current and is valid for thirty days after

1 the date of certification;

2 (4) Full faith and credit shall be accorded to a lien arising by
3 operation of law against real and personal property for amounts overdue
4 relating to a support order owed by a judgment debtor or obligor who
5 resides or owns property in this state when another state agency, party,
6 or other entity seeking to enforce such lien complies with the procedural
7 rules relating to the filing of the lien in this state. The state agency,
8 party, or other entity seeking to enforce such lien shall send a
9 certified copy of the support order with all modifications, the notice of
10 lien prescribed by 42 U.S.C. 652(a)(11) and 42 U.S.C. 654(9)(E), and the
11 appropriate fee to the clerk of the district court in the jurisdiction
12 within this state in which the lien is sought. Upon receiving the
13 appropriate documents and fee, the clerk of the district court shall
14 accept the documents filed and such acceptance shall constitute entry of
15 the foreign support order for purposes of this section only. Entry of a
16 lien arising in another state pursuant to this section shall result in
17 such lien being afforded the same treatment as liens arising in this
18 state. The filing process required by this section shall not be construed
19 as requiring an application, complaint, answer, and hearing as might be
20 required for the filing or registration of foreign judgments under the
21 Nebraska Uniform Enforcement of Foreign Judgments Act or the Uniform
22 Interstate Family Support Act;

23 (5) Support order judgments shall cease to be liens on real or
24 registered personal property ten years from the date (a) the youngest
25 child becomes of age or dies or (b) the most recent execution was issued
26 to collect the judgment, whichever is later, and such lien shall not be
27 reinstated;

28 (6) Alimony and property settlement award judgments, if not covered
29 by subdivision (5) of this section, shall cease to be a lien on real or
30 registered personal property ten years from the date (a) the judgment was
31 entered, (b) the most recent payment was made, or (c) the most recent

1 execution was issued to collect the judgment, whichever is latest, and
2 such lien shall not be reinstated;

3 (7) The court may in any case, upon application or its own motion,
4 after notice and hearing, order a person required to make payments to
5 post sufficient security, bond, or other guarantee with the clerk to
6 insure payment of both current and any delinquent amounts. Upon failure
7 to comply with the order, the court may also appoint a receiver to take
8 charge of the debtor's property to insure payment. Any bond, security, or
9 other guarantee paid in cash may, when the court deems it appropriate, be
10 applied either to current payments or to reduce any accumulated
11 arrearage;

12 (8)(a) The lien of a mortgage or deed of trust which secures a loan,
13 the proceeds of which are used to purchase real property, and (b) any
14 lien given priority pursuant to a subordination document under this
15 section shall attach prior to any lien authorized by this section. Any
16 mortgage or deed of trust which secures the refinancing, renewal, or
17 extension of a real property purchase money mortgage or deed of trust
18 shall have the same lien priority with respect to any lien authorized by
19 this section as the original real property purchase money mortgage or
20 deed of trust to the extent that the amount of the loan refinanced,
21 renewed, or extended does not exceed the amount used to pay the principal
22 and interest on the existing real property purchase money mortgage or
23 deed of trust, plus the costs of the refinancing, renewal, or extension;
24 and

25 (9) Any lien authorized by this section against personal property
26 registered with any county consisting of a motor vehicle or mobile home
27 shall attach upon notation of the lien against the motor vehicle or
28 mobile home certificate of title and shall have its priority established
29 pursuant to the terms of section 60-164 or a subordination document
30 executed under this section.

31 **Sec. 2.** Original section 42-371, Reissue Revised Statutes of

1 Nebraska, is repealed.